

KESAVANANDA BHARATI v STATE OF KERALA (1973)  
CONCLUSIONS & FINAL ORDERS

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[~Line 4922]

PART VIII : Conclusions

To summarise, I hold that:

(a) Golak Nath's (1967) 2 S.C.R. 762 case declared that a Constitutional amendment would be bad if it infringed

Article 13(2), as this applied not only to ordinary legislation but also to an amendment of the Constitution.

(b) Golak Nath's (1967) 2 S.C.R. 762 case did not decide whether Article 13(2) can be amended under Article 368 or determine the exact meaning of the expression "amendment of this Constitution" in Article 368.

(c) The expression "amendment of this Constitution" does not enable Parliament to abrogate or take away, fundamental rights or to completely change the fundamental features of the Constitution so as to destroy its identity. Within these limits Parliament can amend every article.

(d) The Constitution (Twenty-fourth Amendment) Act, 1971, as interpreted by me, has been validly enacted.

(e) Article 368 does not enable Parliament in its constituent capacity to delegate its function of amending the Constitution to another legislature or to itself in its ordinary

legislative capacity.

(f) Section 2 of the Constitution (Twenty-fifth Amendment) Act, 1971, as interpreted by me, is valid.

(g) Section 3 of the Constitution (Twenty-fifth Amendment) Act, 1971 is void as it delegates power to legislatures to amend the Constitution.

(h) The Constitution (Twenty-Ninth Amendment) Act, 1971 is ineffective to protect the impugned Acts if they abrogate or take away fundamental rights. The Constitution Bench will decide whether the impugned Acts take away fundamental rights or only abridge them, and in the latter case whether they effect reasonable abridgements in the public interest.

507. The Constitution Bench will determine the validity of the Constitution (Twentysixth Amendment) Act, 1971 in accordance with this judgment, and the law.

508. The cases are remitted to the Constitution Bench to be decided in accordance with

this judgment, and the law. The parties will bear their own costs.

Shelat and Grover, JJ.

509. All the six writ petitions involve common questions as to the validity of the 24th, 25th and 29th amendments to the Constitution. It is not necessary to set out the facts

which have already been succinctly stated in the judgment of the learned Chief Justice.

510. It was considered, when the larger bench was constituted, that the decision of the

questions before us would hinge largely on the correctness or otherwise of the decision of

this court in I.C. Golak Nath and Ors. v. State of Punjab and Anr. [1967] 2 S.C.R. 762,

according to which it was held, by majority, that Article 13(2) of the Constitution was

applicable to Constitutional amendments made under Article 368 and that for that reason

the fundamental rights in Part III could not be abridged in any manner or taken away. The

decision in Golak Nath has become academic, for even on the assumption that the majority decision in that case was not correct, the result on the questions now raised

before us, in our opinion, would just be the same. The issues that have been raised travel

far beyond that decision and the main question to be determined now is the scope, ambit

and extent of the amending power conferred by Article 368. On that will depend largely

the decision of the other matters arising out of the 25th and the 29th amendments.

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[~Line 21102]

1385. My conclusions are:

(1) The power and the procedure for the amendment of the Constitution were contained in the unamended Article 368. An Amendment of the Constitution in accordance with the procedure prescribed in that Article is not a 'law' within the meaning of Article 13. An Amendment of the Constitution abridging or taking away a fundamental right conferred by

Part III of the Constitution is not void as contravening the provisions of Article 13(2). The majority decision in *Golak Nath v. State of Punjab* is with respect, not correct.

(2) There were no implied or inherent limitations on the Amending power under the unamended Article 368 in its operation over the fundamental rights. There can be none after its amendment.

(3) The twenty fourth, the twenty-fifth and the twenty-ninth Amendment Acts are valid.

1386. The case will now be posted before the regular bench for disposal in accordance with law.

H.R. Khanna J.

1387. Questions relating to the validity of the Constitution (Twentyfourth Amendment)

Act, Constitution (Twentyfifth Amendment) Act and Constitution (Twehtyninth Amendment) Act, as well as the question whether the Parliament acting under Article 368

of the Constitution can amend the provisions of Part III of the Constitution so as to take

away or abridge fundamental rights arise for determination in this petition under Article

32 of the Constitution. A number of other important questions, to which reference would be made hereafter, have also been posed during discussion, and they would be dealt with at the appropriate stage. Similar questions arise in a number of other petitions, and the counsel of the parties in those cases have been allowed to intervene.

1388. The necessary facts may now be set out, while the details which have no material bearing for the purpose of this decision can be omitted. Kerala Land Reform's Act, 1963 (Act 1 of 1964) as originally enacted was inserted as item No. 39 in the Ninth Schedule to the Constitution. The said Act was subsequently amended by Kerala-Land Reforms (Amendment) Act, 1969 (Act 35 of 1969). The petitioner filed the present writ petition on March 21, 1970 challenging the Constitutional Validity of the Kerala Land Reforms Act, 1963 (Act 1 of 1964) as amended by the Kerala Land Reforms (Amendment) Act, 1969 (Act 35 of 1969). The aforesaid Act was also challenged in a number of petitions before the Kerala High Court. A Full Bench of the Kerala High Court as per its decision in V.N. Narayanan Nair v. State of Kerala ILR [1970] (II) Kerala 315 upheld the validity of the said Act, except in respect of certain provisions. Those provisions were declared to be invalid. The State of Kerala came up in appeal to this Court against the judgment of the Kerala High Court in so far as that court had held a number of provisions of the Act to be invalid. This Court dismissed the appeals of the State as per judgment dated April 26, 1972. (1972) 2 S.C.C. 364. Appeals filed by private parties against the judgment of the Kerala High Court upholding the validity of the other provisions too were dismissed. Some writ petitions filed in this Court challenging the validity of the above mentioned Act were also disposed of by this Court in accordance with its decision in the appeals filed by the the State of Kerala and the private parties.

1389. The Kerala High Court as per judgment dated October 21, 1970 declared some other provisions of the Kerala Land Reforms Act as amended by Act 35 of 1969 to be invalid and unconstitutional. After the above judgment of the High Court the Kerala Land Reforms Act was amended by Ordinance 4 of 1971 which was promulgated on January 30, 1971. The Kerala Land Reforms (Amendment) Bill, 1971 was thereafter introduced in the Legislative Assembly to replace the ordinance. The Bill was passed by the Legislative Assembly on April 26, 1971 and received the assent of the President on August 7, 1971. It was thereafter published as the Kerala Land Reforms Act, 1971 (Act

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[~Line 33655]

conclusions:

1. Both the procedure and the power to amend the Constitution are to be found in Article 368 and not in Entry 97 of List I.

2121. The word 'amendment' must be given its full meaning, that is, that the power was

not restricted to improvement of details but extended to the addition to or substitution or

deletion of existing provisions.

2122. In exercise of the power conferred by Article 368 it was competent to the Parliament by observing the procedure prescribed therein to amend any provision of the

Constitution.

2123. The word 'law' in Article 13(2) could only take in laws made by Parliament and

State Legislatures in the exercise of their ordinary legislative power but not amendments

made under Article 368.

2124. The power to amend being a constituent power cannot be held to be subject to any

implied limitations on the supposed ground that the basic features of the Constitution

could not be amended.

2125. Bachawat J. agreed with Wanchoo J. and stated:

1. No limitation on the amending power could be gathered from the language of Article 368. Each and every part of the Constitution could therefore be amended under that Article.

2126. The distinction between the Constitution and the laws is so fundamental that the

Constitution cannot be regarded as a law or a legislative act.

2127. Article 368 indicates that the term 'amend' means 'change'. A change is not

necessarily an improvement.

2128. It was unnecessary to decide the contention whether the basic features of the

Constitution, as for example, the republic form of government or the federal structure

thereof could be amended, as the question did not arise for decision.

2129. Ramaswami J. adopted a similar line of reasoning and held:

2130. That the definition of 'law' in Article 13(3) did not include in terms 'Constitutional

amendment'. Had it been intended by the Constitution-makers that the Fundamental Rights guaranteed by Part III should be completely outside the scope of Article 368 it is

reasonable to assume that they would have made an express provision to that effect.

2131. The Preamble to the Constitution which declared India as a sovereign democratic

republic was not beyond the scope of the amending power; similarly certain other basic

features of the Constitution like those relating to distribution of legislative power, the

parliamentary power of Government and the establishment of the Supreme Court and the

High Courts were also not beyond the power of amendment.

2132. Every one of the articles of the Constitution is amendable under Article 368 and

there was no room for any implication in the construction of that article.

2133. It is thus clear that the majority of Judges in the Golak Nath case consisting of

Justices Wanchoo, Hidayatullah, Bhargava, Mitter, Bachawat and Ramaswami rejected

the argument that Article 368 merely prescribes the procedure to be followed in amending the Constitution. They held that Article 368 also conferred the power

to amend  
the Constitution. They rejected the argument that the power to amend could be  
found in  
Entry 97 of List I. The majority of Judges consisting of Subba Rao, C.J. and his  
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colleagues as well as Hidayatullah J. held that there was no distinction between  
constituent power and legislative power and that the word 'law' used in Article  
13(2)  
includes a law passed by Parliament to amend the Constitution. Subba Rao C.J.  
and his 4  
colleagues suggested that if a Constitution had to be radically altered the  
residuary power  
could be relied upon to call for a Constituent Assembly. Hidayatullah J. took a  
different  
view and held that for making radical alterations so as to abridge Fundamental  
Rights  
Article 368 should be suitably amended and the Constituent Assembly should be  
called

after passing a law under Entry 97 in the light of the amended provisions of Article 368.

It is important to mention that all the eleven Judges who constituted the Bench were

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[~Line 35142]

2241. My conclusions are briefly these:

2242. The decision of the leading majority in the Golak Nath case that the then Article

368 of the Constitution merely prescribed the procedure for amendment of the Constitution and that the power of amendment had to be traced to Entry 97 of List I,

Schedule VII read with Articles 245, 246 and 248 is not correct.

2243. The decision of the leading majority and of Hidayatullah J. that there is no

distinction between an ordinary law and a law amending the Constitution is incorrect.

Article 13(2) took in only ordinary laws, not amendments to the Constitution effected under Article 368.

2244. The decision of the leading majority and of Hidayatullah J. that

Parliament had no

power to amend the Constitution so as to abrogate or take away Fundamental Rights is

incorrect.

2245. The power of amendment of the Constitution conferred by the then Article 368 was

wide and unfettered. It reached every part and provision of the Constitution.

2246. Preamble is a part of the Constitution and is not outside the reach of the amending

power under Article 368.

2247. There are no inherent limitations on the amending power in the sense that the

Amending Body lacks the power to make amendments so as to damage or destroy the essential features or the fundamental principles of the Constitution.

2248. The 24th Amendment only declares the true legal position as it obtained before that

Amendment and is valid.

2249. Section 2(a) and Section 2(b) of the 25th Amendment are valid. Though courts

have no power to question a law described in Article 31(2) substituted by Section 2(a) of

the Amendment Act, OP the ground that the amount fixed or determined for compulsory

acquisition or requisition is not adequate or that the whole or any part of such amount is

to be given otherwise than in cash, courts have the power to question such a law if (i) the

amount fixed is illusory; or (ii) if the principles, if any are stated, for determining the

amount are wholly irrelevant for fixation of the amount; or (iii) if the power of

compulsory acquisition or requisition is exercised for a collateral purpose; or (iv) if the

law of compulsory acquisition or requisition offends the principles of Constitution other

than the one which is expressly excepted under Article 31(2B) introduced by Section 2(b) of the 25th Amendment Act - namely Article 19(1)(f); or (v) if the law is in the nature of a fraud on the Constitution.

2250. Section 3 of the 25th Amendment which introduced Article 31C into the Constitution is valid. In spite, however, of the purported conclusiveness of the declaration



therein mentioned, the Court has the power and the jurisdiction to ascertain whether the

law is for giving effect to the policy of the State towards securing the principles specific

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in Article 39(b) or (c). If there is no direct and reasonable nexus between such a law and

the provisions of Article 39(b) or (c), the law will not, as stated in Article 31C, receive

immunity from a challenge under Articles 14, 19 or 31.

2251. The 29th Amendment Act is valid. The two Kerala Acts mentioned therein, having

been included in the Ninth Schedule, are entitled to the protection of Article 31B of the

Constitution.

2252. I would direct each party to bear its own costs.

2253. As I am coming to the close of my judgment, drafts of judgments of several of my

esteemed colleagues are trickling in. As I look at them, I hear a faint whiser of Lord

Dunedin. And then I thought : I began this judgment by saying that I wanted to avoid

writing a separate judgment of my own. Are first thoughts best?

ORDER

2263. The Constitution Bench will determine the validity of the Constitution (Twenty-sixth Amendment) Act, 1971 in accordance with law.

2264. The cases are remitted to the Constitution Bench for disposal in accordance with

law. There will be no order as to costs incurred upto this stage.

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